Meridian & Rao Legal Associates, Hyderabad
Internal Case File — Privileged & Confidential

State of Telangana vs. Vikram Chowdary

Criminal Case No. CC/482/2024 — Cheating and Forgery

Illustrative / synthetic case file created for training and demonstration purposes (e.g., testing retrieval-augmented generation systems). All names, dates, case numbers, and facts are fictional and do not correspond to any real person, entity, or proceeding.

1. Case Overview

Case No.	CC/482/2024
Court	Court of the Additional Chief Metropolitan Magistrate, Nampally, Hyderabad
Complainant	Sunrise Textiles Pvt. Ltd., represented by its Director, Mr. Suresh Bhatia
Accused	Mr. Vikram Chowdary, Proprietor, Chowdary Trading Co.
Sections Invoked	Sections 318(4) and 338 of the Bharatiya Nyaya Sanhita, 2023 (corresponding to erstwhile Sections 420 and 468 IPC) — cheating and forgery for the purpose of cheating
Investigating Officer	Sub-Inspector K. Ravinder, Begumpet Police Station
Firm's Client	Complainant (Sunrise Textiles Pvt. Ltd.)
Handling Advocate	Adv. Priyanka Menon, Associate

2. Brief Facts

The complainant, Sunrise Textiles Pvt. Ltd., placed a purchase order dated 14 February 2024 with Chowdary Trading Co. for the supply of 12,000 meters of dyed cotton fabric, valued at ₹18,40,000, with delivery scheduled within 30 days. An advance of ₹9,20,000 (50% of the order value) was paid by RTGS on 16 February 2024 against a proforma invoice issued by the accused.

No goods were delivered within the stipulated period. On follow-up, the accused furnished a delivery challan dated 10 March 2024 purportedly signed by the complainant's warehouse manager acknowledging partial receipt of goods — a document the complainant disputes having signed or received. Subsequent verification revealed that the transport company named on the challan had no record of any such consignment. The complainant alleges that the accused never intended to supply the goods and fabricated the delivery challan to delay recovery action and cover the misappropriation of the advance amount.

3. Chronology of Proceedings

Date	Event	Notes / Outcome
14 Feb 2024	Purchase order placed	PO No. STX/PO/0219 issued to Chowdary Trading Co.
16 Feb 2024	Advance payment made	₹9,20,000 transferred via RTGS; UTR retained on file
10 Mar 2024	Disputed delivery challan received	Complainant denies authenticity of signature
22 Mar 2024	Legal notice issued to accused	Demanded refund of advance within 15 days; no response received
18 Apr 2024	FIR registered	FIR No. 112/2024, Begumpet Police Station
30 Jun 2024	Chargesheet filed	Filed before ACMM Nampally under BNS Ss. 318(4), 338
12 Jul 2024	First appearance of accused	Accused released on bail of ₹1,00,000 with one surety

9 Sep 2024	Charges framed	Accused pleaded not guilty; claimed trial ordered
21 Nov 2024	PW-1 (complainant's Director) examined-in-chief	Deposed on placement of order and advance payment
15 Jan 2025	PW-1 cross-examined	Defense questioned delay in raising dispute; matter part-heard
18 Mar 2025	PW-2 (warehouse manager) examined	Denied signing the disputed delivery challan

4. Documents on Record

Exhibit No.	Description	Relevance
Ex. P1	Purchase order dated 14 Feb 2024	Establishes terms of the transaction and delivery timeline
Ex. P2	RTGS payment confirmation dated 16 Feb 2024	Proof of advance payment of ₹9,20,000
Ex. P3	Disputed delivery challan dated 10 Mar 2024	Alleged forged document; subject of forgery charge
Ex. P4	Reply from named transport company denying any consignment	Corroborates that no delivery was ever made
Ex. P5	Legal notice dated 22 Mar 2024 and postal tracking receipt	Demonstrates demand for refund prior to FIR
Ex. P6	Forensic handwriting comparison report	Opines that signature on Ex. P3 does not match specimen signatures of PW-2

5. Key Legal Issues

- Whether the accused had dishonest intention at the time of inducing payment of the advance, as required to sustain a charge of cheating
- Whether the disputed delivery challan (Ex. P3) is a forged document, and whether it was used to deceive or delay recovery action
- Whether civil remedies (recovery suit) pursued in parallel affect the maintainability or urgency of the criminal proceeding
- Quantum of loss actually suffered by the complainant, relevant to sentencing and compounding discussions, if any

6. Current Status

The matter is at the prosecution evidence stage. PW-1 and PW-2 have been examined; cross-examination of PW-2 is pending. The defense has indicated an intention to summon the transport company's branch manager as a defense witness to challenge the authenticity of Ex. P4.

7. Next Steps

- Next hearing: 22 April 2025 — cross-examination of PW-2 (warehouse manager)
- Prepare re-examination points in view of anticipated defense questions on chain of custody for Ex. P3
- Follow up with forensic expert (author of Ex. P6) regarding availability for examination as PW-3
- Track parallel civil recovery suit (C.S. No. 88/2024) for consistency of pleadings

8. Internal Notes (Privileged & Confidential)

Client has expressed willingness to consider compounding the matter if full refund with interest is made before final arguments; this position has not been communicated to the opposite side and should not be disclosed without further instructions. Team should continue to prepare for full trial in parallel.

9. Relevant Legal Provisions

- Section 318, Bharatiya Nyaya Sanhita, 2023 — Cheating (corresponding to Section 415/420, IPC 1860)
- Section 338, Bharatiya Nyaya Sanhita, 2023 — Forgery for the purpose of cheating
- Section 336, Bharatiya Nyaya Sanhita, 2023 — Forgery, general provision defining the offence
- Section 63, Bharatiya Sakshya Adhiniyam, 2023 — Admissibility of electronic and documentary evidence (relevant to Ex. P2 and Ex. P4)

10. Precedents Relied Upon

The following categories of precedent are being relied upon in preparing arguments on dishonest intention and forgery; specific citations to be finalized by the handling advocate before the next hearing:

- Authorities on the distinction between a mere breach of contract and cheating, emphasizing that dishonest intention must exist at the time of the promise, not merely arise later from non-performance
- Authorities on proof of forgery through comparison of admitted and disputed signatures, and the evidentiary value of expert opinion under the Bharatiya Sakshya Adhiniyam
- Authorities on the effect of a pending civil recovery suit on the maintainability and conduct of parallel criminal proceedings arising from the same transaction

11. Risk Assessment

The complainant's documentary trail (purchase order, payment proof, and the transport company's denial) is strong. The principal litigation risk lies in establishing that the accused's intention was dishonest from inception rather than a subsequent commercial default, given the defense's likely argument that delivery was merely delayed due to supply-chain issues. The forensic handwriting report (Ex. P6) is expected to be pivotal in rebutting this defense.

12. Witness List

Witness	Role	Status
PW-1 — Mr. Suresh Bhatia	Director, Sunrise Textiles Pvt. Ltd. (complainant)	Examined-in-chief and cross-examined (completed)
PW-2 — Warehouse Manager	Denies signing disputed delivery challan (Ex. P3)	Examined-in-chief completed; cross-examination pending
PW-3 — Forensic Document Examiner	Author of handwriting comparison report (Ex. P6)	Yet to be examined; availability being confirmed
DW-1 (anticipated) — Transport Company Branch Manager	Expected defense witness on consignment records	Not yet summoned; defense has indicated intent to call

13. Correspondence Log

Date	Correspondence	Summary
2 Apr 2024	Email from client to firm	Instructs firm to pursue both criminal complaint and parallel civil recovery suit
25 Jun 2024	Letter from Investigating Officer	Confirms completion of investigation and intent to file

		chargesheet
5 Feb 2025	Email exchange with forensic expert's office	Confirming availability for examination as PW-3 in April 2025

End of document. Internal reference: MER-CRIM-2024-482 (synthetic training corpus).